

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF MARIN**

DATE: 06/12/26 TIME: 1:30 P.M. DEPT: L CASE NO: CV0008235

PRESIDING: HON. MARK A. TALAMANTES

REPORTER:

CLERK: M. GIL

PLAINTIFF: PATRICIA WELLS KEEL

vs.

DEFENDANT: STATE FARM MUTUAL
AUTOMOBILE INSURANCE COMPANY

NATURE OF PROCEEDINGS: MOTION - COMPEL

RULING

Respondent State Farm Automobile Insurance Co. (“State Farm”) seeks to compel a neuropsychological examination conducted by neuropsychologist pursuant to Code of Civil Procedure §§ 2032.310 and 2032.320, on Plaintiff Patricia Keel. The proposed exam will include (1) a clinical interview, lasting approximately 2.0 hours, and (2) a series of neuropsychological tests lasting 6 hours. The proposed interview is to cover a psychosocial history, educational background, work history, medical history, personal history, psychiatric history, an account of the events underlying the issues at hand, the difficulties resulting from those events, and other factors that State Farm believes be relevant to understanding the Plaintiff's psychological, neurological, and/or neuropsychological condition.

In her objection to Demand 1, she asks that: 1) she shall not assume financial responsibility for any of the medical billings arising out of the medical examination regardless, including cancellation; 2) the scope of interview be further defined and not a full “psychosocial history, educational background, work history, medical history, personal history, psychiatric history; and 3) the timing of the exam must be limited and defined.

These requests are not unreasonable. While a plaintiff “may place his mental state in controversy by a general allegation of severe emotional distress, the opposing party may not require him to undergo psychiatric testing solely on the basis of speculation that something of interest may surface.” *Vinson v. Superior Court* (1987) 43 Cal.3d 833, 840. Merely placing one’s mental status in controversy is only the “first step” in assessing whether to compel a mental examination, i.e., that is not a substitute for good cause. *Id.*

The Defendant is correct that the Plaintiff does not dispute that a mental exam may be appropriate. However, here Plaintiff asks for greater structure and also an agreement regarding the scope and length of the testing before the exam.

The court, after review of the moving and opposition papers, finds good cause to GRANT the Defendant's motion in part. There shall be an examination. However, the matter is referred to a session with a discovery facilitator to sort the details regarding setting the exam for less than 8 hours, and to create protocols to limit the diagnostic testing so it is streamlined to obtain the information sought by the least intrusive means.

The claimant shall not be responsible for the cancellation fees. Should Plaintiff miss the examination, Defendant could then seek sanctions.

The request for sanctions is denied.

Given this guidance, the parties shall meet and confer to attempt to informally resolve this matter by June 26, 2026. Marin County Rule, Civil 2.13B, establishes the procedures available for the Discovery Facilitator Program. Unfortunately, this matter was never forwarded to the program, nor was a facilitator appointed. The matter is now referred to the discovery facilitator program. The Court reminds the parties that compliance with MCR Civ 2.13H not only includes the timely filing of the Declaration of Non-Resolution by each party five court days prior to the hearing, but also requires that "[t]he Declaration shall not exceed three pages and ***shall briefly summarize the remaining disputed issues and each party's contentions.***" (MCR Civ 2.13H(1), emphasis added.)

Hearing on the discovery motion is continued to July 24, 2026, at 1:30 pm in this department, after the parties have had the opportunity to meet and confer, and meet with the discovery facilitator if necessary.

Counsel for Defendant to prepare the order.

Parties must comply with Marin County Superior Court Local Rules, Rule 2.10(A), (B), which provides that if a party wants to present oral argument, the party must contact the Court at (415) 444-7046 and all opposing parties by 4:00 p.m. the court day preceding the scheduled hearing. Notice may be by telephone or in person to all other parties that argument is being requested (i.e., it is not necessary to speak with counsel or parties directly.) Unless the Court and all parties have been notified of a request to present oral argument, no oral argument will be permitted except by order of the Court. In the event no party requests oral argument in accordance with Rule 2.10(B), the tentative ruling shall become the order of the court.

IT IS ORDERED that evidentiary hearings shall be in-person in Department L. For routine appearances, the parties may access Department L for video conference via a link on the court website. Kindly turn your camera on when your case is called and make sure the party or lawyer making the appearance is properly identified on the screen.

FURTHER ORDERED that the parties are responsible for ensuring that they have a good connection and that they are available for the hearing while using the virtual remote courtroom. If the connection is inadequate, the Court may proceed with the hearing in the party's absence. If it is determined that you are driving your car during the hearing, you will be removed from the virtual courtroom. (Yes, this happens).